

		Plaintiff's Motion for Order Establishing Admissions Propounded on Defendant Daniel Joel Videen and for Monetary Sanctions in the Sum of \$1,072.50 Plaintiff Balboa Capital Corporation's unopposed Motion to Deem Requests for Admissions, Set One Admitted against Defendant Daniel Joel Videen is GRANTED. Defendant Videen failed to respond to Plaintiff Balboa Capital's Request for Admissions, Set One which were served on 1/30/2023. (Raichelson Decl., ¶ 2, Ex. A.) Defendant has not opposed the motion or provided any reason for not responding to the discovery. Accordingly, Plaintiff's Requests for Admissions, Set One propounded to Defendant Videen are deemed admitted. Defendant Videen is ORDERED to pay sanctions to plaintiff's counsel in the sum of \$1,072.50 within 20 days. Plaintiff to give notice.
9	Sparkle and Co., LLC vs Club Motorcars, LLC 30-2021-01234386-CU-BC-CJC	Defendants' Demurrer to Complaint The parties' belated stipulation to continue the hearing is rejected. The unopposed Demurrer of Defendants Kamiz Bahkshiyar, Paul Christopher Vanides, and Club Motorcars, LLC, is SUSTAINED with 10 days leave to amend. Plaintiff is ordered to file a red-lined version and clean version of the First Amended Complaint. Defendants to give notice. Defendants' Motion to Strike Portions of Plaintiffs' Complaint The parties' belated stipulation to continue the hearing is rejected. The unopposed Motion to Strike of Defendants Kamiz Bahkshiyar, Paul Christopher Vanides, and Club Motorcars, LLC, is DENIED as MOOT. Defendants to give notice.

10	Sun vs BNSF Railway Company 30-2020- 01170148-CU-PO- CJC	Defendant City of Anaheim's Motion for Summary Judgment Defendant, City of Anaheim's Motion for Summary Judgment is DENIED. Defendant failed to meet its initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) The City failed to meet its initial burden to show it did not own/control the subject fence. The City's separate statement is devoid of any facts of ownership. Further, the City's separate statement is devoid of any facts about the so-called "crosswalk to nowhere." On this record, even if the City's legal argument is correct, there are inadequate facts upon which to base a ruling as a matter of law. Plaintiffs to give notice.
----	---	---